

Supreme Court of the State of New York
Appellate Division, First Judicial Department

PRESENT Hon. Troy K. Webber,
David Friedman
Ellen Gesmer
Llinét M. Rosado
Marsha D. Michael,

Justice Presiding,

Justices.

Kathy Welliver,
Plaintiff-Appellant-Respondent,

Motion No. 2025-03414

Index No. 155126/14

Case No. 2024-03556

-against-

T-C The Colorado LLC et al.,
Defendants-Respondents-Appellants,

Whirlpool Corporation et al.,
Defendants.

Defendant-respondent-appellant Hercules Corporation having moved for clarification or reargument of the decision and order of this Court, entered on May 20, 2025 (Appeal No. 4395),

Now, upon reading and filing the papers with respect to the motion, including the correspondence from counsel for defendants-respondents-appellants dated July 30, 2025, and due deliberation having been had thereon,

It is ordered that the motion is deemed withdrawn in accordance with the aforesaid correspondence.

ENTERED: March 03, 2026



Susanna Molina Rojas
Clerk of the Court